

24STCV04371 24STCV04371

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Case Number: 24STCV04371 Hearing Date: September 23, 2026 Dept: 514

Taghavi v. FAA Beverly Hills, Inc.

24STCV04371

Plaintiff's Motion for Attorney's Fees, Costs, and Expenses

Defendant's Motion to Tax Costs

Tentative Ruling

The

motion for attorney's fees is granted in part.

The

motion to tax costs is granted in part.

Background

This

matter is brought under the Song-Beverly Consumer Warranty Act.

On February 21, 2024, Shane Taghavi ("Plaintiff") filed the complaint in this action against FAA Beverly Hills, Inc dba Beverly Hills BMW ("FAA"); BMW of North America, LLC ("Defendant"); and Does 1 through 10.

On March 15, 2024, Defendant filed an answer.

On March 28, 2024, FAA filed an answer.

On June 5, 2026, Plaintiff filed a notice of settlement of the entire case.

Two motions are currently before the Court and set for hearing on September 23.

First, on August 3, 2026, Plaintiff filed this motion for attorney's fees and expenses. Defendant filed an opposition on August 26. No reply has been filed. The hearing was initially set for September 9 and was continued by the Court to September 23.

Second, also on August 3, 2026, Plaintiff filed a memorandum of costs. On August 20, Defendant filed a motion to tax costs. Plaintiff filed an opposition on September 10, and Defendant filed a reply on September 16.

Legal Standard

Attorney's Fees and Expenses

Under the Song-Beverly Consumer Warranty Act, a consumer who is damaged by a failure to comply with the Act may bring an action for damages and other relief. (Civ. Code, § 1794, subd. (a).) A prevailing plaintiff may also recover attorneys' fees and costs:

"If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

(Civ. Code, § 1794, subd. (d).)

An attorneys' fee award is generally to be based upon actual time expended rather than being tied to any percentage of the recovery. (*Drouin v. Fleetwood Enterprises* (1985) 163 Cal.App.3d 486, 493.) Because Plaintiff

is suing under the Song-Beverly Act, the legislative policies favor recovery of all attorney fees reasonably expended without limiting the fees to a proportion of the actual recovery. (*Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 164.)

The fee setting inquiry in California ordinarily begins with the “lodestar” method, i.e., multiplying the number of hours reasonably expended by a reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) Such an approach anchors the trial court’s analysis to an objective determination of the value of the attorney’s services, ensuring that the amount awarded is not arbitrary. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 48 fn.23; *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1393-1394.) The Court may rely on its own experience and knowledge in determining the reasonable value of attorney fees. (*PLCM Group*, *supra*, 22 Cal.4th at p. 1096; *Taylor v. Nabors Drilling USA, LP* (2014) 222 Cal.App.4th 1228, 1249.)

The lodestar figure may be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (*Serrano*, *supra*, 20 Cal.3d at p. 49.) The factors considered in determining the modification of the lodestar include the nature and difficulty of the litigation, the amount of money involved, the skill required and employed to handle the case, the attention given, the success or failure, and other circumstances in the case. (*Ibid.*; *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132; *EnPalm, LLC v. Teitler Family Trust* (2008) 162 Cal.App.4th 770, 774.)

A positive multiplier may be applied to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment (and delayed payment) in contingency cases. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.) A negative modifier is appropriate when duplicative work has been performed. (*Thayer v. Wells Fargo Bank, N.A.* (2001) 92 Cal.App.4th 819.)

California courts have generally “rejected the notion that the fee award must be proportionate to the amount of damages recovered.” (*Niederer v. Ferreira* (1987) 189 Cal.App.3d 1485, 1508.

Motion to Tax Costs

Code of Civil Procedure section 1032 provides that, in general, the “prevailing party” is entitled as a matter of right to recover costs for suit in any action or proceeding. (Code Civ. Proc., § 1032, subd. (b); see *Santisas v. Goodin* (1998) 17 Cal.4th 599, 606; *Scott Co. Of Calif. v. Blount, Inc.* (1999) 20 Cal.4th 1103, 1108.) Assuming the “prevailing party” requirements are met, the trial court has no discretion to order each party to bear his or her own costs of suit. (*Michell v. Olick* (1996) 49 Cal.App.4th 1194, 1198; *Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 129.)

Code of Civil Procedure section 1033.5, subdivision (a) enumerates items that are allowable as costs under section 1032. These costs must be “reasonable in amount” and “reasonably necessary to the conduct of the litigation, rather than merely convenient or beneficial to its preparation.” (Code Civ. Proc., § 1033.5, subd. (c)(2) & (c)(3).) Subdivision (b) of section 1033.5 identifies certain items that are generally not allowable as costs. Subdivision (c) states that other items may be allowed or denied as costs in the discretion of the court. (*Id.*, subd. (c)(4).)

If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-774.) But once there is a proper objection, the burden of proof is on the party claiming them as costs. (*Ibid.*) Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court. (*Ibid.*)

Request for Judicial Notice

Plaintiff asks the Court to take judicial notice of three Minute Orders issued in other cases in Los Angeles County Superior Court. The request is granted, but the Court notes that trial court orders are not binding precedent or authority.

Discussion

Attorney's
Fees and Expenses

Plaintiff moves for
fees and expenses as a prevailing party under the Song-Beverly Consumer
Warranty Act.

Plaintiff seeks to
recover for 88.7 hours of time and for \$3,842.34 in expenses. As the expenses are also the subject of a
memorandum of costs (and a motion to tax those costs), the expenses are
discussed below.

There is no dispute that, in light of the settlement, Plaintiff
is the prevailing party and is entitled to recover reasonable fees and
costs.

Defendant opposes
the motion, arguing that many of the fees and costs requested are excessive, not
reasonable, or otherwise not recoverable.

Time Expended

The Court begins with an analysis
of the hours expended under a lodestar analysis. The Court has reviewed the billing records of
Plaintiff's counsel on a line-by-line basis.

(See Yousef Decl., Exh. C.) Based

on the Court's review of the time entries, the Court concludes that Plaintiff
has not shown that some of the time expended was reasonable. In some cases, the time entries were so
heavily redacted that the Court could not conduct a reasonableness review; although
of course the Court understands that some information in billing records may be
privileged, the Court cannot determine that time spent is reasonable when it
cannot make sense of the time entries.

In other cases, the descriptions were inadequate or the amount of time billed
was not reasonable.

After conducting this review, the
Court concludes as follows: Logan Hensley's time is reduced to 26.4 hours; Laura
Goolsby's time is reduced to 4.6 hours; Virginia Walls's time is reduced to
13.5 hours; Clarence Serrano's time is reduced to 5.4 hours; Jennifer Romo's

time is reduced to 1.2 hours; Caletth Ibarra's time is reduced to 2.6 hours; Jose Gonzalez's time is reduced to 0.0 hours; Christian Abad's time is reduced to 0.0 hours; and Walter Orellana's time is reduced to 0.0 hours. In all other respects, Plaintiff has shown that the time billed is reasonable, and Defendant's challenges are rejected.

Billing Rates

The Court finds that the billing rates charged by Plaintiff's counsel are reasonable and consistent with the rates reasonably charged by other attorneys, paralegals, and professional support staff for similar work in the community.

With the time adjustments noted above, the lodestar fee is reduced to \$23,783.00

Multiplier

The Court declines to award a multiplier to Plaintiff. Although the Court understands that this work is contingent in nature, and there is a risk of not recovering and delay in receiving payment for the work performed, the Court determines that the reasonable hourly fees requested by Plaintiff, and approved by this Court, takes into account and therefore fully compensates Plaintiff and the attorneys for those risks and delays.

The Court sets the amount of the award for reasonable attorney's fees in this matter at \$23,783.00.

Motion to Tax Costs

Plaintiff filed a Memorandum listing \$3,842.34 in costs. Defendant has filed this motion to tax costs.

The Court has considered the evidence and argument presented by both sides. The Court finds that Plaintiff has not shown the expert witness fees of \$2,721 and the downloading/postage fees of \$91.99 are recoverable under Code of Civil Procedure section 1033.5, subdivisions (a) and (b). In all other respects, the motion is denied.

Accordingly, the Court taxes the memorandum of costs in the amount of \$2,812.99, reducing the amount of costs that Plaintiff may recover to \$1,029.35.

Conclusion

The Court GRANTS IN PART the motion of Plaintiff Shane Taghavi to recover reasonable attorney's fees.

The Court DETERMINES that the amount of fees reasonably expended by Plaintiff's counsel in this matter is \$23,783.00.

The Court GRANTS IN PART the motion of Defendant BMW of North America, LLC to tax costs.

The Court taxes costs in the amount of \$2,812.99, and accordingly reduces the total amount of recoverable costs to \$1,029.35.

The Court ORDERS Defendant BMW of North America, LLC to pay fees and costs to Plaintiff Shane Taghavi in the amount of \$24,812.35 pursuant to Civil Code section 1794 by no later than October 23, 2026.

Plaintiff is ORDERED to give notice.